

Application
to Scotland
and Ireland,

19.—(1.) In the application of this Act to railways in Scotland and Ireland respectively, references to the Edinburgh or Dublin Gazette shall, as the case may require, be substituted for references to the London Gazette.

(2.) In the application of this Act to railways in Scotland, the following modifications shall be made:—

The expression “Summary Jurisdiction Acts” means the Summary Jurisdiction (Scotland) Acts;

The summary jurisdiction conferred by this Act shall be exercised solely by the sheriff, and shall be held to be civil within the meaning of the twenty-eighth section of the Summary Procedure Act, 1864. The sheriff shall upon request of any party to the cause take notes of the evidence, and any party, if dissatisfied with the sheriff’s judgment as erroneous either in point of law or of fact, may appeal thereagainst to either division of the Court of Session, which appeal shall be heard summarily by the said division, whose judgment shall be final. The Court of Session may, if it thinks fit, by act of sederunt regulate the form and time of presentation of such appeals.

27 & 28 Vict.
c. 53.

Short title.

20. This Act may be cited as the Railway Employment (Prevention of Accidents) Act, 1900.

SCHEDULE.

1. Brake levers on both sides of waggons.
2. Labelling waggons.
3. Movement of waggons by propping and tow roping.
4. Steam or other power brakes on engines.
5. Lighting of stations or sidings where shunting operations are frequently carried on after dark.
6. Protection of point rods and signal wires, and position of ground levers working points.
7. Position of offices and cabins near working lines.
8. Marking of fouling points.
9. Construction and protection of gauge glasses.
10. Arrangement of tool boxes and water gauges on engines.
11. Working of trains without brake vans upon running lines beyond the limits of stations.
12. Protection to permanent way men when relaying or repairing permanent way.

CHAPTER 28.

An Act to amend the Inebriates Acts, 1879 to 1899, for Scotland. [30th July 1900.]

BE it enacted by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Subsection (e) of section twenty-five of the Inebriates Act 1898, is hereby repealed, and in lieu thereof the following provisions shall have effect:—

For the purpose of defraying expenditure under the Inebriates Act, 1898, county councils and town councils shall

(1) have power to impose and levy an assessment in the same manner and subject to the same conditions as the public health general assessment authorised by the Public Health (Scotland) Act, 1897; and

(2) have power to borrow money on the security of the said assessment for the capital purposes of the Inebriates Act, 1898, in the same manner and subject to the same conditions as for the purposes enumerated in section one hundred and forty-one of the Public Health (Scotland) Act, 1897.

2. Every person who in any road, street, or public place, or in any building to which the public have access, commits the offence of behaving while drunk in a riotous or disorderly manner, may be prosecuted summarily on a charge under this Act, and shall be liable on conviction to a penalty not exceeding forty shillings, and failing payment to imprisonment for a period not exceeding seven days, or in the discretion of the magistrate to imprisonment for a period not exceeding seven days.

An offence under this section shall be deemed to be an offence mentioned in the First Schedule to the Inebriates Act, 1898.

3. This Act shall apply to Scotland only, and may be cited as the Inebriates Amendment (Scotland) Act, 1900, and the Inebriates Acts, 1879 to 1899, and this Act may be cited together as the Inebriates Acts, 1879 to 1900.

CHAPTER 29.

An Act to assimilate the County Council and Borough Council Franchise in London. [30th July 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the London County Council Electors Qualification Act, 1900.

2. A parochial elector shall be entitled to vote at the election of a county councillor for the administrative county of London in the same manner as a county elector, and subject to the same provisions.